

Calendar Line 5

Case Name: *Sarkis v. Miltenyi Biotec, Inc.*
Case No.: 24CV439462

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their

discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[A]ll persons who are or were previously employed by Defendant in California classified as a non-exempt employee during the Class Period [February 5, 2020 through August 12, 2025].

(Declaration of Mehrdad Bokhour in Support of Motion for Preliminary Approval, Ex. A (“Agreement”), ¶¶ 7, 39.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as: “all persons who are or were previously employed by Defendant in California classified as a non-exempt or hourly employee at any time from February 5, 2023 through August 12, 2025.” (*Id.* at ¶ 3.)

Defendant will pay a gross settlement amount of \$2,100,000, and this amount includes: attorney fees of up to one third of the gross settlement amount (i.e., \$700,000); litigation costs not to exceed \$40,000; a PAGA penalties allocation of \$100,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$10,000 to each Plaintiff (\$20,000 total); and settlement administration costs up to \$6,000. (Motion, pp. 1–2; Agreement, ¶ 48 et seq.) The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (Agreement, ¶ 48(d).) Settlement checks will be void 180 days after issuance. At preliminary approval the Court appointed Phoenix Class Action Administration Solutions (“Phoenix”) as settlement administrator and approved the designation of the Interdisciplinary Center for Healthy Workplaces at the University of California, Berkeley as the *cy pres* recipient of funds from uncashed settlement checks. (*Id.* at ¶¶ 36, 74.)

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the operative Complaint...” (Agreement, ¶¶ 4, 32.) Aggrieved Employees will be deemed to release Defendant and related entities and persons from “any and all claims for PAGA penalties that were alleged, or reasonably could have been alleged during the PAGA Period, based on the facts stated in the Complaint and the PAGA Notice....” (*Id.* at ¶¶ 23, 32.) As the Court found at preliminary approval, the release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court appointed Phoenix as settlement administrator. On February 2, 2026, Defendant provided Phoenix with the class list, which contained 230 class members. (Declaration of Taylor Mitzner (“Mitzner Decl.”), ¶ 3.) Phoenix mailed the class notice to all 230 class members on February 17, 2026. (*Id.* at ¶¶ 4–5 and Ex. A.) The deadline to request exclusion, object, or submit a workweek dispute was April 3, 2026. Phoenix received one request for exclusion, zero objections, and one workweek dispute, which it referred to counsel for both sides for review. (*Id.* at ¶¶ 7–9.) Phoenix estimates the average individual settlement share at \$5,388.65. (*Id.* at ¶ 13.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. As there are objections to the settlement, the Court finds no reason to deviate from its earlier finding. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Awards, Attorney Fees and Costs

Plaintiffs Sharolin Sarkis and Ana Cabrera each seek a service award of \$10,000. At preliminary approval the Court noted that each Plaintiff had submitted a declaration estimating approximately 35 to 40 hours devoted to activities benefiting the class, including preparing for

and sitting for depositions, and deferred the amount of the awards to final approval. In addition to their deposition testimony, both Plaintiffs participated in two separate mediations, gathered and provided documents, and executed general releases of their individual claims that are materially broader than the release given by the class. (Motion, pp. 13–15; Bokhour Decl., ¶¶ 15–16.) The requested amounts were disclosed in the class notice and no class member objected to them. The Court finds that service awards are justified and that the amounts requested are reasonable. The service awards are approved in the amounts requested.

Class Counsel seek an attorney fee award of \$700,000, which is one third of the gross settlement amount and the maximum permitted by the Agreement. (Motion, pp. 7–13; Bokhour Decl., ¶¶ 17–21; Declaration of Joshua Falakassa (“Falakassa Decl.”), ¶¶ 15–16.) Counsel report a combined lodestar of \$250,862.50 for 340 hours: 174.5 hours by Mr. Bokhour at \$750 per hour (\$130,875), and 165.5 hours by Mr. Falakassa at \$725 per hour (\$119,987.50). The requested fee therefore reflects a multiplier of approximately 2.79, which is within the range of multipliers California courts approve. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount of \$700,000.

Class Counsel report actual litigation costs of \$46,829.01, itemized as a \$75 LWDA filing fee, \$25,941.25 in mediation fees, \$6,165 in expert fees, \$12,165.20 in deposition costs, \$2,393.96 in filing fees, and \$88.60 in service of process charges. (Bokhour Decl., ¶ 22.) Because the Agreement caps recoverable costs at \$40,000 and the class notice disclosed that cap, counsel seek only \$40,000 and absorb the difference. (*Id.* at ¶ 23.) The Court approves reimbursement of litigation costs in the requested amount of \$40,000. Settlement administration costs are likewise approved in the requested amount of \$6,000. (Mitzner Decl., ¶ 16 and Ex. B.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

Plaintiffs shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 6

Case Name: *Holman v. Equinix, LLC*
Case No.: 24CV438270

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement by order filed February 26, 2026. Before the Court is Plaintiff's motion for final approval of the settlement. The motion is unopposed.

As discussed below, the Court finds that the notice process was adequate and that the settlement is fair, reasonable, and adequate. Nevertheless, the parties have not satisfied the condition imposed at preliminary approval that they designate a *cy pres* beneficiary for uncashed settlement funds in compliance with Code of Civil Procedure section 384. The settlement agreement and the class notice as mailed continue to direct that uncashed funds be transmitted to the State Controller's Unclaimed Property Fund, a disposition the Court has already found does not comply with section 384. Accordingly, the Court CONTINUES the hearing on the motion for final approval to September 9, 2026 at 1:30 p.m. in Department 5 and orders the parties to cure this deficiency as set forth in Part IV below.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys